



INT7

Sub-processor Agreements (DPA) — Record

Lumi Education Pty Ltd · ABN 45 700 349 015 · 24 July 2026

TEMPLATE — TO POPULATE

⚠️ PRIVACY/LEGAL-SENSITIVE DRAFT — PRIVACY ADVISER MUST REVIEW

This is a **template** for recording acceptance of each vendor's data-processing terms. **Nic records the actual acceptances** (dates, contracting entity, evidence files). The rows below are **placeholders** — they do **not** assert that any agreement has been accepted. Do not treat a placeholder as evidence. Store signed/account-specific artefacts outside Git in an access-controlled location and reference them here. Not legal advice.

ST4S item: INT7 (written data agreements with integrated third parties) **Version:** 0.1 — DRAFT for review, not yet signed **Date:** 2026-07-24 **Owner of actual acceptances:** Nic (Lumi owner/director) **Evidence location:** `docs/privacy/vendor-evidence/` (public terms, dated + hashed) + an access-controlled legal folder outside Git (account-acceptance proof)

1. Purpose

INT7 asks whether Lumi has **written data agreements** with the third parties it integrates. This record captures, per vendor: the agreement name, whether/when it was accepted, the contracting Lumi entity, and where the evidence lives. It works with the vendor register (`docs/privacy/VENDOR_DATA_FLOW_REGISTER.md`) and the dated public-terms pack (`docs/privacy/vendor-evidence/2026-07-17/`).

Important distinction (from `vendor-evidence/2026-07-17/README.md`): capturing a vendor's *public* terms proves the terms existed and their content on a date; it does **not** prove which Lumi legal entity **accepted** them, when, or on which billing account. INT7 needs the latter — the acceptance record — which only Nic can produce from the vendor consoles/accounts.

2. Acceptance record (Nic completes)

Fill each row from the vendor console / account. Use **role labels**, never personal emails or phone numbers, for any named contact. Set "Accepted?" to `Yes` only when the acceptance evidence is captured and filed.

#	Vendor / integration	Agreement name	Accepted?	Date accepted	Contracting Lumi entity	Acceptance evidence location
1	Google Cloud (Firestore, Storage, Functions/Run, Logging, Secret Manager)	Google Cloud Data Processing Addendum (+ service-specific terms)	☐ Pending	—	[entity]	Public terms: vendor-evidence/2026-07-17/raw/google-cloud-data-processing-addendum.txt . Account-acceptance proof: [legal folder]
2	Firebase (Authentication, FCM, App Check, Analytics, Crashlytics)	Firebase Data Processing and Security Terms	☐ Pending	—	[entity]	Public terms: vendor-evidence/2026-07-17/raw/firebase-data-processing-security-terms.txt . Account proof: [legal folder]
3	Twilio SendGrid (email)	Twilio Data Protection Addendum	☐ Pending	—	[entity]	Public terms: vendor-evidence/2026-07-17/raw/twilio-data-protection-addendum.txt . Account proof: [legal folder]
4	Cloudflare (status-banner Worker; any CDN/edge in front of sites)	Cloudflare Data Processing Addendum	☐ Pending	—	[entity]	Public terms: [capture to vendor-evidence/]. Account proof: [legal folder] — also add Cloudflare to the vendor register
5	Apple (App Store distribution, APNs)	Apple Developer Program License Agreement (+ any Apple DPA/addendum)	☐ Pending	—	[entity]	Enrolment/agreement export: [legal folder]
6	Google Play (distribution)	Google Play Developer Distribution Agreement (+ Play data terms)	☐ Pending	—	[entity]	Enrolment/agreement export: [legal folder]
7	Support mailbox provider (provider not yet named)	Provider terms / DPA	☐ Pending	—	[entity]	[name the provider first — see gaps]

(Google Books and Open Library are public metadata APIs receiving ISBN/title only — no personal information — so they are not data-processing counterparties. Record their public privacy/retention terms in the vendor register for completeness, but no DPA is expected. Confirm with the adviser.)

3. The one-line vendor-gate rule (feeds EV6)

To keep this record complete over time, adopt the following standing rule (to be added to the EV6 change/vendor-management control):

No new SDK, API, sub-processor or vendor secret may be added to production until the vendor register records its purpose, data, location, retention, deletion, contract/DPA, security owner and APP 8 decision, and this INT7 record has the accepted data agreement filed.

This mirrors data-flow rule 3 already in the vendor register (`VENDOR_DATA_FLOW_REGISTER.md` §Data-flow rules) and makes it a release gate.

4. Evidence index

Item	Location
Dated + hashed public terms (Google/Firebase/Twilio/OAIC)	<code>docs/privacy/vendor-evidence/2026-07-17/README.md</code>
Vendor register (purpose/data/location/status per vendor)	<code>docs/privacy/VENDOR_DATA_FLOW_REGISTER.md</code>
Companion public sub-processor table	<code>SUB_PROCESSOR_TABLE.md</code> (PR17)
Cross-border/APP 8 legal framing	<code>APP_8_CROSS_BORDER_DISCLOSURE_LAWYER_BRIEF.md</code>
Account-acceptance / billing proof	Access-controlled legal folder outside Git (do not commit)

5. Known gaps / adviser must confirm

- **All rows are Pending.** No acceptance date, contracting entity, or account proof is filed yet — every "Accepted?" is `□ Pending`. This record must not be read as evidence that agreements are in place.
- **Nic must supply the account-acceptance proof.** Public terms alone do not satisfy INT7; Nic exports/screenshots each console acceptance and files it in the access-controlled legal folder, then updates the table.
- **Cloudflare is not yet in the vendor register.** A Cloudflare Worker serves the in-app status banner and Cloudflare may sit in front of the sites; capture its DPA and add it to the register (and to `SUB_PROCESSOR_TABLE.md`) — or record a reasoned finding that it processes no personal information.
- **Support mailbox provider unnamed.** Name the provider, then record its terms.
- **Contracting entity / ABN.** Confirm the single Lumi legal entity that accepted each agreement (APP 8 brief §4 — entity/APP-entity status open).
- **Do not store secrets, billing records, account numbers or signed private agreements in Git** — reference their access-controlled location only (`vendor-evidence/2026-07-17/README.md` closing note).
- **Sign-off.** The privacy adviser confirms this record satisfies INT7 once the rows are completed with real, filed evidence.